EX CONSTAMBLE MBAIMBAI
versus
THE COMMISSIONER GENERAL OF POLICE
and
MINISTER OF HOME AFFAIRS

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE, 16 February 2026

K. Mawodza for applicant
T Tembo for the respondent

Opposed Application

CHITAPI J: The parties appear as cited in the heading to the application. The applicant refers to himself as ex constable Mbaimbai. From the correspondence on record his name is Cannan Mbaimbai. He swore to the founding affidavit stating that his name is Ex Constable Mbaimbai which is not correct. No issue was raised by the respondents. In an affidavit the deponent must be correctly named. After observing as above, I will not *mero motu* disqualify or rule the affidavit as invalid. The respondent simply stated that the respondents were cited in the heading. He did not state why each of them is cited or his or her relationship with the cause of complaint.

This is a review application in which the applicant who is a cashiered Constable in the Zimbabwe Republic Police seeks an order as follows:

> "IT IS ORDERED THAT
> 1. The failure by the second respondent to afford applicant the right to be heard before being discharged from the Police Service be and is hereby declared to be unlawful and wrongful
> 2. The refusal and or failure by the first respondent to furnish applicant with reasons for the discharge be and is hereby declared as unlawful and wrongful
> 3. The discharge of the applicant from the Police Service by the first and second respondents as declared unlawful and wrongful and is accordingly set aside.
> 4. The respondents are ordered to reinstate the applicant into the Police service forthwith without loss of salary or benefits
> 5. The respondents are ordered to pay costs of suit on client/ attorney scale."

The applicant was for eleven years a member of the Zimbabwe Republic Police employed as a constable until cashiered on 20 June 2017 after as it was determined that the

applicant was unsuitable her police duties. As provided for under section 50 (3) (a) (1) of the Police Act Chapter 11-10, the discharge was decided after the applicant had been convicted by a Single Officer for acting in an unbecoming or disorderly manner or in any manner prejudicial to good order or discipline or reasonably likely to bring discredit to the Police Force. His appeal to the Commissioner General, first respondent herein was unsuccessful. He requested the first respondent for reasons for dismissing his appeal but none were forthcoming. The applicant then filed an appeal to the second respondent under section 51 of the Police Act. The applicant contends that he was in terms of the same section 51 supposed to be reinstated upon the noting of his appeal to the second respondent. He contended that as a result of the first respondent's failure to reinstate him, payment of his salary was stopped and he was evicted from Police accommodation. The applicants appeal to the second respondent was dismissed. This review application challenges the decision of the second respondent to dismiss the applicant on the basis of gross procedural irregularities. The applicant alleged several such irregularities. His contentious are;

(a) He was not given an opportunity to be heard on appeal in breach of the *audi alteram paterm* rule.

(b) he was not served with the first respondents response as the first respondent was a party and was not informed whether the appeal was opposed or not

(c) the second respondent did not conduct a public hearing as contemplated in section 69 of the Constitution.

(d) the decision of the second respondent was one sided did not show whether his grounds of appeal were considered at all thus showing bias against the applicant

(e) he was not given an opportunity to make submissions on appeal or to respond to the first respondent's response.

(f) the second respondent determined several appeals on the same and was therefore too busy to have applied its mind fully to the applicants appeal

(g) that the second respondent did not furnish reasons for believing the first respondent and not him nor did the second respond to allegations of gross irregularity made against the first respondent of not following laid down procedures

(h) that the first respondent violated section 69(2) of the constitution by not giving reasons in writing promptly for its decision affects the right freedom interest or legitimate expectation of every person.

(i) the second respondent is not properly constituted and its decisions are nullity in that in beach of the provisions of the Third Schedule to the Constitution the Chairperson and all members of the second respondent did not take the oath of loyalty as provided in the constitution and were not therefore appointed in terms of the constitution.

The applicant averred that he did not attach the record of proceedings before the first respondent and that of the second respondent because they refused to furnish him with the said records.

The first respondent in response averred that the applicant did not request for reasons for her discharge from the first respondent and yet the applicant claims to have requested for the reasons from his officer in charge. The first respondent averred that the applicant was not reinstated because he did not follow the provisions of section 15 of the Police (Trials and Boards of Enquiry Regulations) 1965 which provide that grounds of appeal are submitted to the Officer Commanding. It was averred that the applicant instead by passed the officer Commanding Officer commanding and filed the notice of appeal directly to the second respondent

In relation to the giving of reasons for the decision the first respondent averred that whilst the applicant is entitled to reasons, he did not request for them and thus he was not denied the reasons. He challenged the applicant to attach a copy of the request if he made one. The first respondent also averred that the applicant did not request for the record of proceedings and consequently the applicant's failure to attach the record should not be blamed on the first respondent

The second respondent in its response attached its record of proceedings. It purports that the second respondent dealt with applicants' grounds of appeal and determined that they were founded on lies thus rendering them null and void.

The court is severely handicapped to deal with this review in substance because of the absence of the record of proceedings. The second respondent decision is the end result and is decided on the record of proceedings in which the applicant was brought before the disciplinary structures at the onset. The applicant was tried by a trial officer and found guilty. This is the crux of the matter. To the first respondent, the matter came before him on appeal with a further appeal

noted to the second respondent. The second respondent in upholding the first respondents' decision must have found that the decision was supportable by and was consistent with the decision of guilt reached by the Trial Officer.

The applicant was required in terms of the proviso to rule 62(5) of the High Court Rule 2021 to ensure that the respondents lodge the record of proceedings with this court within the twelve (12) days of them being served with the application. The decision of the second respondent to uphold the appeal cannot be reviewed as to its correctness procedurally or substantively without the record of proceedings. The applicant was ill advised to seek to argue this review without the record. He did not attempt to ask for a postponement to enable him to take necessary steps to have the record of proceedings placed before the court. He did not even attempt to apply to the court at the hearing for an order that the record(s) of proceedings be availed.

Consequently without the record of proceedings or in this case, the complete record the court has nothing to review since a review is based upon the record of proceedings. In such circumstances the matter must be struck off the roll. I will not make an order of costs because both parties are at fault with regards furnishing the record of proceedings. The respondents are required

by the rule 62(5) to lodge the record without prompting. They did not do so. The applicant did not take steps to ensure compliance after he noted that the request for the record if he made them were refused.

Resultantly I make the following order

IT IS ORDERED THAT

The application be and is hereby struck off the roll with no order of costs.

CHITAPI J……

Mugiya and Macharaga Law Chambers, applicant's legal practitioners
Civil Division respondent's legal practitioners